

Court No. - 29

Case :- WRIT - C No. - 42085 of 2024

Petitioner :- Sewa Suraksha Sahkari, Awas Samiti Limited And Another

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Anand Kumar Srivastava, Vijay Kumar Yadav

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Vivek Kumar Birla, J.

Hon'ble Ms. Nand Prabha Shukla, J.

As jointly agreed, put up this case as fresh on 10.01.2025.

Order Date :- 18.12.2024

Nitendra

Court No. - 39

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Petitioner :- Sewa Suraksha Sahkari, Awas Samiti Limited And Another

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Anand Kumar Srivastava, Vijay Kumar Yadav

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Supplementary affidavit filed today, is taken on record.
2. From the record, we find that the temporary connection was taken by the respondent no.7 for the purposes of making certain constructions on the land in question. The petitioner is the owner of the land. When the bills with regard to that temporary connection were not paid, the Electricity Department had proceeded against the respondent no.7.
3. Learned counsel appearing for the Electricity Department may inform the Court as to under what circumstances now the actual owner of the land was being proceeded against.
4. Prima facie, it appears that when the Electricity Department failed to recover the amount of electricity dues from the respondent no.7, they have now shifted their energies in recovering the amount so recoverable from the petitioner.
5. Learned counsel appearing for the Electricity Department may take instructions in the matter.
6. Put up this case as fresh on 05th February, 2025.

Order Date :- 10.1.2025

Radhika

(Dr. Y. K. Srivastava, J.) (Siddhartha Varma, J.)

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Kumar Yadav

Counsel for Respondent :- C.S.C., Pranjali Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Ms. Nand Prabha Shukla, J.

1. Instructions filed today by learned counsel for the Electricity Department be kept on record. From the instructions, we were able to get the application form which was submitted by respondent no.7-M/s. Sarasth Propbuild Pvt. Ltd. and in the application it was clearly mentioned that the land belonged to Sewa Suraksha Sahkari Awas Samiti Ltd. and the applicant who was applying for the electricity connection was only an occupier.

2. Learned counsel for the Electricity Department has drawn the attention of the Court to Clause 6.15 of the Electricity Supply Code which shows that the licensee would be entitled to recover the amount due from such person who had taken the connection and had not paid the electricity dues as arrears of land revenue.

3. In the instant case, we are definitely of the view that the land in question belonged to the petitioner and the respondent no.7 was only an occupier. If the amount is to be recovered from the respondent no.7, we are unable to understand as to how the land of the petitioner could be sold in auction.

4. Matter requires consideration.

5. Learned counsel appearing for the Electricity Department may file a detailed counter affidavit, within two weeks, explaining as to how the petitioner can be made liable for the consumption which was done by the respondent no.7. The petitioner shall have one week thereafter to file rejoinder affidavit.

6. List thereafter.

7. Till the next date of listing, no coercive action shall be taken against the petitioner.

8. Needless to mention that the Electricity Department shall be at liberty to proceed against respondent no.7.

Order Date :- 5.2.2025

GS

(Nand Prabha Shukla, J.) (Siddhartha Varma, J.)